

STATE OF NEW YORK

7982--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 16, 2025

Introduced by M. of A. CHANG, ANGELINO, HAWLEY, SMULLEN -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property actions and proceedings law, in relation to final judgments on a petition

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "small home owner and tenant fairness act".

3 § 2. Section 745 of the real property actions and proceedings law is
4 amended by adding a new subdivision 3 to read as follows:

5 3. In cases concerning dwellings with two units or less, the court
6 shall render a final judgment on a petition no later than six months
7 from the date upon which issue is joined. Further, in cases concerning
8 dwellings with three or four units, the court shall render a final judg-
9 ment on a petition no later than twelve months from the date upon which
10 the issue is joined. Provided, however, that the parties to the proceed-
11 ing may agree to waive the time requirement for final judgment as estab-
12 lished by this subdivision.

13 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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